Westlaw Research Analysis — Matter 20

Newanforbi v. California Highway Patrol, et al., Alameda County Superior Court No. 26CV191136 Motion for Peremptory Writ of Mandate (Count 1, Pen. Code § 679.10) — hearing January 8, 2027

Prepared: October 24, 2026 (America/Los_Angeles) for Brendan Ngehsi Newanforbi (self-represented), the `research/matter-20-2026-10-24` branch, and any downstream reviewer or tool. **Sources:** Two Westlaw (Patron Access for Pro Se) read-and-KeyCite passes run October 24, 2026, plus authorities verified in earlier passes (see `citation-audit.md`). KeyCite flags are as of October 24, 2026. **Companion note:** `westlaw-citator-check-2026-10-24.md` (first-pass summary; its Open checklist has been updated to match this document).

> **Not legal advice.** This is a research work product prepared for a self-represented litigant. It summarizes what was read on Westlaw on one day. Re-run KeyCite before filing.

How to read this document

Verification status labels (used for every authority):

Label	Meaning
READ IN FULL	Entire opinion (or majority opinion, as stated) read on screen.
READ RELEVANT PASSAGES	The cited pages and surrounding discussion were read; the rest of the opinion was not.
SKIMMED	Opened and scanned; pinpoints may be approximate.
HEADNOTE / SYNOPSIS ONLY	Only Westlaw editorial material was seen. Do not quote the opinion.
CITING-REF ONLY	Seen only as a KeyCite citing reference or snippet.
NOT OPENED	Known by citation only.

KeyCite flags: RED = some law no longer good for at least one point; YELLOW = some negative treatment; NONE = no flag displayed; NOT CAPTURED = flag not recorded during the pass (re-check).

Inference marker: Text tagged **[Researcher's read]** is this researcher's own analysis or prediction. It is not a court holding and should not be presented to the court as one.

Quotation rule: Every quotation below was transcribed from Westlaw or the official source during the passes. Star pages marked * are the Westlaw star-paginated official-reporter pages. No quotation or pinpoint has been added beyond what was recorded.

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1. Executive summary — top takeaways

1. **The statute is the strongest authority, and it directly contradicts the denial.** Penal Code § 679.10, subd. (c)(19), lists **false imprisonment** as "qualifying criminal activity." Captain Serrato's April 20, 2026 letter said false imprisonment was "not qualifying criminal activity." That is a misreading of the governing statute on its face — a textbook "proper interpretation of the applicable law" error under Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432, 442. (Statute: READ RELEVANT PASSAGES through subd. (o)(1); no flag.)

2. **Subdivision (g)(1) is mandatory once its two predicates are met.** A certifying official "shall certify victim helpfulness" on Form I-918 Supplement B on request when the requester was a victim of qualifying criminal activity and "has been helpful, is being helpful, or is likely to be helpful." Subd. (h) adds a rebuttable presumption of helpfulness; subd. (i)(2) requires a written explanation of any denial; subd. (j) sets a 30-day deadline (7 days if in removal proceedings); subd. (k)(3) lists impermissible reasons for denial, including a belief that USCIS will not approve the petition.

3. **No California appellate decision construes § 679.10 certification or reviews a denial by writ.** Targeted Westlaw searches — "Immigrant Victims of Crime Equity Act" (0), "Penal Code section 679.10" (0), `"U visa" & mandamus & certif!` (0), `679.10 & certif!` (2, neither usable) — found nothing. The only California case citing the statute on certification (People v. Agustin, 2025 WL 3564125) is unpublished and red-flagged. **[Researcher's read]** Count 1 presents a question of first impression; the brief should say so candidly and build from the statute plus general mandamus law.

4. **The mandamus framework is solid and current.** Core: Common Cause, 49 Cal.3d at 442, and Cal. Correctional Supervisors Org. v. Dept. of Corrections (2002) 96 Cal.App.4th 824, 827 ("Where only one choice can be a reasonable exercise of discretion, a court may compel an official to make that choice"; no negative treatment). Recent reaffirmations: Crestwood Behavioral Health v. Baass (2023) 91 Cal.App.5th 1, 15–16; Alameda Health System v. ACERA (2024) 100 Cal.App.5th 1159, 1177; CV Amalgamated LLC v. City of Chula Vista (2022) 82 Cal.App.5th 265, 279–280; Water Audit California v. Merced Irrigation Dist. (2025) 111 Cal.App.5th 1147, *1181.

5. **Remedy authority is better than the packet currently uses.** CV Amalgamated models both remedies in one opinion: a direct order to rescind and process (at 283) and an order to re-exercise discretion under the correct standard (at 286). Saleeby v. State Bar (1985) 39 Cal.3d 547, 565–568, supports requiring findings sufficient for review and a remand "for such further consideration as may be appropriate."

6. **Qualifying-crime support is good on the law, thinner on fabricated evidence.** Hagberg v. California Federal Bank (2004) 32 Cal.4th 350, 372 fn. 7 & 372–373 (false arrest is one way to commit false imprisonment; tort and crime defined the same way); Asgari v. City of Los Angeles (1997) 15 Cal.4th 744, 752–753 (officers not immune for false arrest/imprisonment); Gov. Code § 820.4; Pen. Code § 847(b); Schmidlin v. City of Palo Alto (2007) 157 Cal.App.4th 728, 777 (arrest without probable cause is unlawful). **No California case located expressly holds that an officer's arrest on fabricated**

evidence is false imprisonment. Rely on § 679.10(c)(19), these authorities, and Judge Krishnan's June 29, 2026 screening order (persuasive only).

7. **Federal authority cuts both ways but does not control.** Perez Perez v. Wolf, 943 F.3d 853 (9th Cir. 2019) (majority READ IN FULL) holds the U-visa statutory framework supplies "meaningful standards" for review, including whether a crime is "qualifying criminal activity." Chairez v. Mayorkas, 168 F.4th 1227 (9th Cir. 2026) narrows review of discretionary judgment calls under 8 U.S.C. § 1252(a)(2)(B)(ii) but distinguishes statutory threshold requirements and does not cite Perez Perez. **[Researcher's read]** Limits on federal courts reviewing USCIS do not govern state mandamus over a state officer's duty under a state statute — but expect CHP to cite Ordonez Orosco, Mercado-Guillen, Trevino, and Chairez.

8. **Remove or avoid:** Vichy Springs (the useful passages are in unpublished parts), Gillan (red flag), Assn. of Deputy DAs v. Gascon (red flag), People v. Agustin (unpublished, red flag), Feah, LLC v. City of El Monte (unpublished), and the Sanders (330–332) and Mercer (768–769) pinpoints.

9. **Candor points.** CCSO affirmed the denial of a writ; the Crestwood petitioner lost on the facts; Alameda Health applies deferential quasi-legislative review. Cite them for the standards, not for their results.

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2. Statutory framework — Penal Code § 679.10

Version: current text, effective January 1, 2024. **Status:** READ RELEVANT PASSAGES (read through subd. (o)(1)). **KeyCite:** no flag; Notes of Decisions list only City & County of San Francisco v. Barr (preemption context; not opened).

2.1 Provisions and how each maps to Count 1

Subdivision	Content (as read)	Use in Count 1
(c)(19)	False imprisonment is listed as "qualifying criminal activity."	Direct contradiction of the April 20 "not qualifying criminal activity" ground. Legal error, not a judgment call.
(c)(18)	Packet pairs (c)(18)–(19) for "unlawful criminal restraint" and false imprisonment.	**Not separately confirmed in these Westlaw passes** — confirm the (c)(18) wording before filing (see Open items).
(d)	"Qualifying crime" includes offenses whose nature and elements are substantially similar (per packet; earlier-verified text).	Fallback: Pen. Code § 146(a) (officer detaining without lawful authority) and § 236.
(g)(1)	Certifying official "shall certify victim helpfulness" on Form I-918 Supp. B, on request, when the victim was a victim of qualifying criminal activity and "has been helpful, is being helpful, or is likely to be helpful."	The mandatory-duty hook. Two predicates: (a) victim of qualifying activity; (b) helpfulness.
(h)	Rebuttable presumption of helpfulness.	Shifts burden: the April 20 letter did not rely on lack of helpfulness.

Subdivision	Content (as read)	Use in Count 1
(i)(2)	If certification is denied, a written explanation is required.	Supports findings-based remand (Saleeby, 565–567); the stated reason must be the real statutory ground.
(j)	Decision within 30 days of request, or 7 days if the requester is in removal proceedings.	Timing; context for urgency of remedy.
(k)(3)	Impermissible reasons for denial include a belief that USCIS will not approve the petition.	Constrains any "discretion" CHP claims; useful against post-hoc rationalizations.
(k)(1)	(Per packet, earlier-verified) certification does not depend on charges being filed.	Answers "no one was charged" arguments.

2.2 Analysis

Mandatory duty. The verb is "shall," and the duty attaches "when" the two predicates exist. **[Researcher's read]** Any discretion CHP retains is discretion to decide the predicates under the correct statutory definitions — not discretion to refuse once they are met, and not discretion to redefine "qualifying criminal activity." That framing fits Common Cause, 49 Cal.3d at 442 (mandamus may compel an official "to exercise it under a proper interpretation of the applicable law") and CCSO, 96 Cal.App.4th at 827 (relief where the official acted "in derogation of the applicable legal standards"; compel the only reasonable choice).

The denial's stated ground. The April 20 letter said false imprisonment is "not qualifying criminal activity." Subdivision (c)(19) says the opposite. **[Researcher's read]** On that ground alone the denial cannot stand: it rests on a misreading of the statute, which is reviewable de novo as legal error (cf. Amalgamated Transit Union Local 276 v. San Joaquin RTD (2019) 36 Cal.App.5th 1, citing CCSO for de novo statutory interpretation — weak, use as "see" only). The remaining question is remedy: direct certification (only one lawful choice) or vacate and remand (lawful range remains).

Where CHP will push back. (1) The incident was a lawful DUI arrest, so no "victim" of false imprisonment exists — this is a factual dispute about the first predicate, not a defense of the letter's legal ground. (2) Federal regulation 8 C.F.R. § 214.14(a)(2) and federal case law treat certification as discretionary. **[Researcher's read]** California's "shall certify … when" displaces that for state officers; federal discretion cases address federal-court power over federal agencies.

No case law construing § 679.10. See Takeaway 3. Secondary sources located (snippets only; NOT read): 53 Cal. W. L. Rev. 149 (2017) (on SB 674); 22 San Joaquin Agric. L. Rev. 141 (2012–13) (titled in part "U-Visa Certification Requirement Is Blocking Congressional Intent Creating the Need for a Writ of Mandate…"). Do not quote either until read.

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3. Argument-by-argument authority tables

Abbreviations: **Flag** = KeyCite flag; **Status** = verification status.

3.1 Mandatory duty / legal error

Authority	Pin	Proposition	Flag	Status	Use
Pen. Code § 679.10(g)(1), (c)(19), (h), (i)(2), (j), (k)(3)	—	"shall certify"; false imprisonment qualifies; presumption; written reasons; deadlines; impermissible reasons	None	Read relevant passages	**Lead authority**
Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432	442	Mandamus compels exercise of discretion "under a proper interpretation of the applicable law"	Not captured; 8 negative entries unreviewed	Read relevant passages (earlier pass, official text)	**Core**
Cal. Correctional Supervisors Org. v. Dept. of Corrections (2002) 96 Cal.App.4th 824	827	"derogation of the applicable legal standards"; "only one choice" rule	No negative treatment	Read relevant passages (earlier pass)	**Core** (note: writ denied)
Crestwood Behavioral Health v. Baass (2023) 91 Cal.App.5th 1	15	Restates Common Cause 442 rule	Not captured; 0 negative	Read relevant passages (standards)	Supporting, recent
Water Audit California v. Merced Irrigation Dist. (2025) 111 Cal.App.5th 1147	1180–81 (*1181)	Common Cause rule; petitioner adequately pleaded a duty	Yellow	Read relevant passages	Supporting, recent
Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559	576	Ministerial and informal actions "do not merit such deference" as quasi-legislative ones	Not captured	Read relevant passages (earlier pass)	Standard of review / record
Amalgamated Transit Union Local 276 v. San Joaquin RTD (2019) 36 Cal.App.5th 1	—	Cites CCSO for de novo statutory interpretation	Not captured	Citing-ref only	Weak "see" cite at most
American Medical Response of Inland Empire v. County of San Bernardino (2025) 117 Cal.App.5th 856	872	Quotes Common Cause; no ministerial duty to award to highest bidder	**Unclear** (red in one citing list; none in header)	Read relevant passage	**Adverse-ish; do not cite until flag verified**

3.2 Abuse of discretion

Authority	Pin	Proposition	Flag	Status	Use
Crestwood, 91 Cal.App.5th 1	16; 20–21	Mandamus "is a proper remedy to challenge agency discretionary action as an abuse of discretion"; arbitrary, capricious, fraudulent, or without due regard for rights	Not captured; 0 negative	Read relevant passages	**Primary** (petitioner lost on facts)
Saleeby v. State Bar (1985) 39 Cal.3d 547	562	"mandamus will lie to correct an abuse of discretion or the actions of an administrative agency which exceed the agency's legal powers"	Yellow (other points)	Read relevant passages (559–568)	**Primary**
Alameda Health System v. ACERA (2024) 100 Cal.App.5th 1159	1177	"arbitrary, capricious or entirely without evidentiary support, and whether it failed to conform to procedures required by law"	Not captured; 0 negative	Read relevant passages	Supporting (deferential, quasi-legislative)
CV Amalgamated LLC v. City of Chula Vista (2022) 82 Cal.App.5th 265	279–280	Common Cause quote; mandate for abuse of discretion	Yellow	Read relevant passages	Supporting
CCSO, 96 Cal.App.4th 824	827	"acted arbitrarily, beyond the bounds of reason or in derogation of the applicable legal standards"	No negative treatment	Read relevant passages	**Core**
Citizens for East Shore Parks v. State Lands Com. (2011) 202 Cal.App.4th 549	573	Arbitrary-or-capricious standard embraces review for legal error	Not checked	Seen only as quoted in an **unpublished** part of Vichy Springs	**Open first-hand and KeyCite before citing**

3.3 Remedy — writ / remand

Authority	Pin	Proposition	Flag	Status	Use
CCSO, 96 Cal.App.4th 824	827	Compel the only reasonable choice	No negative treatment	Read relevant passages	**Primary** for direct certification
CV Amalgamated, 82 Cal.App.5th 265	283	Writ directing city to rescind rejection and process applications per ordinance	Yellow	Read relevant passages	**Primary** model for direct order

Authority	Pin	Proposition	Flag	Status	Use
CV Amalgamated, 82 Cal.App.5th 265	286	Writ directing city to re-exercise discretion (rescore) without the improper criterion	Yellow	Read relevant passages	**Primary** model for vacate-and-remand
Saleeby, 39 Cal.3d 547	565–568	Opportunity to be heard; findings sufficient for review; remand "for such further consideration as may be appropriate"; "We express no view on the merits."	Yellow (other points)	Read relevant passages	**Primary** for remand with findings
Common Cause, 49 Cal.3d 432	442	Will not compel a particular manner of exercising discretion	Not captured	Read relevant passages	Frames the alternative remedy
Pen. Code § 679.10(i)(2)	—	Written explanation of denial	None	Read relevant passages	Pairs with Saleeby findings

3.4 Qualifying crime — false imprisonment

Authority	Pin	Proposition	Flag	Status	Use
Pen. Code § 679.10(c)(19)	—	False imprisonment is qualifying criminal activity	None	Read relevant passages	**Lead**
Pen. Code § 236	—	"the unlawful violation of the personal liberty of another" (packet quote; earlier official-source check)	n/a	**Not pulled on Westlaw in these passes**	Use; re-confirm text
Hagberg v. California Federal Bank (2004) 32 Cal.4th 350	372 fn. 7; 372–373	False arrest is "merely one way" false imprisonment is accomplished; tort and crime "are defined in the same way"	Yellow (14 entries, all Civ. Code § 47(b)/ anti-SLAPP)	Read relevant passages	**Primary**
Asgari v. City of Los Angeles (1997) 15 Cal.4th 744	752–753 & fn. 3	Police immune for malicious prosecution "but not for false arrest and imprisonment"; false arrest is one way of committing false imprisonment; false imprisonment ends at arraignment	Yellow	Read relevant passages (opening, Part II, headnotes)	**Primary** — pin 752 vs 753 unresolved
Gov. Code § 820.4	—	"Nothing in this section exonerates a public employee from liability for false arrest or false imprisonment."	n/a	Read relevant passages	Supporting

Authority	Pin	Proposition	Flag	Status	Use
Pen. Code § 847(b)	—	No civil liability if arrest lawful or officer had reasonable cause to believe it lawful (etc.)	n/a	Read relevant passages	Supporting by negative implication **[Researcher's read]**
Schmidlin v. City of Palo Alto (2007) 157 Cal.App.4th 728	777	Arrest without probable cause is unlawful; CACI 1402	Yellow (8 entries)	Read relevant passages	Elements only
Kerkeles v. City of San Jose (2011) 199 Cal.App.4th 1001	—	§ 1983 fabricated-evidence claim	Not captured	Synopsis only	Background only; do not quote
Krishnan screening order, N.D. Cal. No. 4:26-cv-05953-ASK, Dkt. 5	p. 4	Plausible inferences of false imprisonment on fabricated evidence and retaliatory denial "despite his status as a victim of the qualifying crime of false imprisonment"	n/a (court record)	Quoted from record as reproduced in packet; not part of Westlaw passes	Persuasive only; § 1915 screening, facts assumed true

3.5 Federal landscape and adverse authority

Authority	Pin	Proposition	Flag	Status	Use
Perez Perez v. Wolf, 943 F.3d 853 (9th Cir. 2019)	863; 864–868	U-visa framework provides "meaningful standards"; review for legal error (whether a crime is qualifying), evidence consideration, substantial evidence; § 701(a)(2) and § 1252(a)(2)(B)(ii) no bar	Yellow (distinguished only)	**Read in full (majority)**; dissent partly	Persuasive support: "qualifying criminal activity" is a legal question
Chairez v. Mayorkas, 168 F.4th 1227 (9th Cir. 2026)	1231–32; 1234–35	§ 1182(d)(14) waiver discretionary and unreviewable; guidance-on-discretion vs. statutory threshold requirements	Yellow	Read relevant passages (majority through ~1236)	Anticipate; distinguish
Concepcion v. Mullin, 2026 WL 1388761 (S.D. Cal. May 18, 2026)	—	Cites Perez Perez 866 and Chairez 1232, 1234–35; § 1252(a)(2)(B)(ii) did not bar review of adjudication hold	Not captured	Citing-ref review	Shows the two coexist post-Chairez
Patel v. Mullin, 2026 WL 3131272 (N.D. Ill. Oct. 19, 2026)	—	Rejects Perez Perez, follows 7th Cir. L.D.G.; dismisses	Not captured	Citing-ref review	Adverse (out of circuit)
Ordonez Orosco v. Napolitano, 598 F.3d 222 (5th Cir. 2010)	226	Adverse on federal certification discretion (earlier-pass characterization)	Not captured in these passes	Earlier pass; not re-read	Anticipate; distinguish as federal

Authority	Pin	Proposition	Flag	Status	Use
Mercado-Guillen v. McAleenan (N.D. Cal. 2019)	—	Adverse (earlier-pass characterization)	Not captured	Earlier pass	Anticipate
Trevino v. Benton County	—	Adverse (earlier-pass characterization)	Not captured	Earlier pass	Anticipate
Garcia v. USCIS, 146 F.4th 743 (9th Cir.)	—	Followed in Chairez; cert. petition No. 25-937 pending	Not captured	Not opened	Monitor

[Researcher's read] on the federal landscape. Perez Perez's core holding — that statutory eligibility criteria (including whether the crime is "qualifying criminal activity") are reviewable — likely survives Chairez, which expressly distinguishes statutory threshold requirements from discretionary guidance (1234–35) and treats the § 701(a)(2) and § 1252 questions as distinct (1231–32). Perez Perez's reliance on Spencer/ANA Int'l reasoning is weakened for discretionary components. None of this binds an Alameda County court applying Code Civ. Proc. § 1085 to a state officer under Pen. Code § 679.10, but CHP may invoke the federal cases to argue certification is inherently discretionary. Response: California chose "shall certify ... when"; the April 20 letter's error was a statutory-definition error, which is reviewable even under Perez Perez's federal framework.

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4. Case-by-case citator entries

Each entry: citation · court · KeyCite flag · direct history · negative treatment · holding/relevance · best quote(s) with star page · read status · use recommendation.

4.1 Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432

- **Court:** Cal. Supreme Court.
- **Flag:** Not captured in these passes. **Negative treatment:** 8 entries listed; **not reviewed** (Open item).
- **Relevance:** Foundational statement of traditional-mandamus scope.
- **Best quote (*442):** "Mandamus may issue, however, to compel an official both to exercise his discretion (if he is required by law to do so) and to exercise it under a proper interpretation of the applicable law."
- **Status:** READ RELEVANT PASSAGES (442–443, earlier pass, official text).
- **Use:** Core. Re-confirm the 8 negative entries are off-point before filing.

4.2 California Correctional Supervisors Organization, Inc. v. Department of Corrections (2002) 96 Cal.App.4th 824

- **Court:** Cal. Ct. App., 3d Dist.
- **Flag / negative treatment:** No negative treatment.
- **Holding:** Affirmed denial of writ; states the standards.

- **Best quotes (*827):** "Where a statute leaves room for discretion, a challenger must show the official acted arbitrarily, beyond the bounds of reason or in derogation of the applicable legal standards." / "Where only one choice can be a reasonable exercise of discretion, a court may compel an official to make that choice."
- **Status:** READ RELEVANT PASSAGES (earlier pass).
- **Use:** Core for both legal-error and direct-certification remedy. Disclose the result if asked.

4.3 Saleeby v. State Bar (1985) 39 Cal.3d 547

- **Court:** Cal. Supreme Court.
- **Flag:** Yellow. **Direct history:** none.
- **Negative treatment (4), all on due process / fees, not mandamus:** Alexander v. Florida Bar (S.D. Fla. 2006) (declined to extend); Ryan v. CIF–San Diego (2001) (distinguished); Low v. Golden Eagle (2003) (distinguished); Adoption of Joshua S. (2008) 42 Cal.4th 945 (distinguished).
- **Relevance:** 561: traditional mandamus is the proper vehicle (quasi-legislative context). 562: preceding sentence says mandamus will not compel a particular method of exercising discretion, followed by the quote below. 565: applicants must be afforded opportunity to be heard; the bar must issue findings sufficient to afford review. 566–567: findings requirement. 568: remand.
- **Best quotes:** 562: "mandamus will lie to correct an abuse of discretion or the actions of an administrative agency which exceed the agency's legal powers." 566–567: information "sufficient to apprise interested parties and the courts of the bases for the administrative action"; "Some findings are necessary to make that review meaningful." *568: remand "for such further consideration as may be appropriate"; "We express no view on the merits."
- **Status:** READ RELEVANT PASSAGES (559–568).
- **Use:** Primary for abuse-of-discretion and findings-based remand. Cite 561–562 for vehicle/no-particular-method and 565–568 for findings and remand.

4.4 Crestwood Behavioral Health, Inc. v. Baass (2023) 91 Cal.App.5th 1

- **Court:** Cal. Ct. App., 3d Dist.
- **Flag:** Not captured. **Negative treatment:** 0.
- **Holding:** Petitioner lost on the facts; opinion restates mandamus standards.
- **Best quotes:** 15: quotes the Common Cause 442 rule. 16: "Although traditional mandamus will not lie to compel the exercise of discretion in a particular manner, it is a proper remedy to challenge agency discretionary action as an abuse of discretion." (This sentence is itself a quotation from earlier authority within Crestwood; cite as "(internal quotation marks omitted)" or quote with nested marks.) *20–21: agency acted arbitrarily, capriciously, fraudulently, or without due regard for petitioner's rights.
- **Status:** READ RELEVANT PASSAGES (standards sections).
- **Use:** Primary recent authority on abuse-of-discretion mandamus. Re-check flag.

4.5 Alameda Health System v. Alameda County Employees' Retirement Assn. (2024) 100 Cal.App.5th 1159

- **Court:** Cal. Ct. App., 1st Dist., Div. 2 (same appellate district as Alameda Superior Court).
- **Flag:** Not captured. **Negative treatment:** 0.
- **Relevance:** 1177: Common Cause* rule; review asks whether the action was "arbitrary, capricious or entirely without evidentiary support, and whether it failed to conform to procedures required by law."
- **Status:** READ RELEVANT PASSAGES.
- **Use:** Supporting; note it applies deferential quasi-legislative review. **[Researcher's read]** Useful because it is First District authority, and the "failed to conform to procedures required by law" prong maps onto § 679.10(i)–(k).

4.6 CV Amalgamated LLC v. City of Chula Vista (2022) 82 Cal.App.5th 265

- **Court:** Cal. Ct. App., 4th Dist., Div. 1.
- **Flag:** Yellow. **Direct history:** modified on denial of rehearing, Aug. 12, 2022.
- **Negative treatment:** CV Amalgamated v. City of Chula Vista, 2025 WL 580395 (S.D. Cal.) (distinguished); Feah, LLC v. City of El Monte, 2026 WL 171385 (Cal. Ct. App., 2d Dist., Jan. 22, 2026, B334407) (unpublished/noncitable; distinguished on ministerial-duty point only — Chula Vista's ordinance barred merit-based rejection at Phase One, El Monte's guidelines were non-binding). Feah only partly read; second attempt blocked by Westlaw document limit.
- **Relevance:** 279: Common Cause quote; 280: mandate for abuse of discretion.
- **Best quotes:** 283: "We will therefore direct the trial court to issue a writ of mandate requiring the City to (1) to rescind its rejection of CVA's applications ... and (2) to process those applications in accordance with the City's Cannabis Ordinance and Cannabis Regulations." 286: "Based on our authority to order relief in traditional mandamus when a public agency has abused its discretion in carrying out a discretionary duty (Common Cause...), we will direct the trial court to issue a writ of mandate requiring the City to exercise its discretion to rescore all four categories of CVA's applications ... without regard to the formatting or organization of the applications in compliance with the directive of the City Manager."
- **Status:** READ RELEVANT PASSAGES.
- **Use:** Primary remedy model. Quote exactly (the earlier packet paraphrase was shorter). **[Researcher's read]** The 283/286 pairing tracks the motion's primary/alternative remedies: direct order where binding law leaves no room (283), re-exercise without the improper criterion where discretion remains (286).

4.7 Water Audit California v. Merced Irrigation Dist. (2025) 111 Cal.App.5th 1147

- **Flag:** Yellow. **Negative treatment:** Dummer v. City & County of San Francisco, 345 Cal.Rptr.3d 91 (Cal. Ct. App., 1st Dist., May 29, 2026) (distinguished).

- **Relevance:** Common Cause passage at 1180–81, key words at *1181. Held petitioner adequately pleaded a duty (fish ladder).
- **Status:** READ RELEVANT PASSAGES.
- **Use:** Supporting recent restatement. Read Dummer's distinction before relying heavily.

4.8 Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559

- **Flag:** Not captured. **Best quote (*576):** ministerial and informal actions "do not merit such deference" as quasi-legislative decisions.
- **Status:** READ RELEVANT PASSAGES (earlier pass). Packet phrase "if the facts are in dispute" was not located — do not quote it.
- **Use:** Standard of review / extra-record evidence framing.

4.9 People v. Jackson (2010) 189 Cal.App.4th 1461

- **Flag:** Not captured in these passes. **Status:** READ RELEVANT PASSAGES (earlier pass, 1465–1470; key page *1467).
- **Use:** Limited — PAS-refusal point only; does not decide every prearrest reasonable-cause question.

4.10 Hagberg v. California Federal Bank (2004) 32 Cal.4th 350

- **Court:** Cal. Supreme Court.
- **Flag:** Yellow. **Negative treatment:** 14 entries, all on Civ. Code § 47(b) privilege / anti-SLAPP — none on the false-imprisonment definition.
- **Best quote (*372 fn. 7):** "False imprisonment consists of the unlawful violation of the personal liberty of another person; a false arrest is merely one way in which a false imprisonment may be accomplished—the two are not separate torts." 372–373: tort and crime of false imprisonment "are defined in the same way" (citing Fermino v. Fedco*).
- **Status:** READ RELEVANT PASSAGES (supersedes first-pass "headnote only").
- **Use:** Primary for (a) false arrest = false imprisonment and (b) tort definition = crime definition, which matters because § 679.10(c)(19) refers to criminal activity.

4.11 Asgari v. City of Los Angeles (1997) 15 Cal.4th 744

- **Court:** Cal. Supreme Court.
- **Flag:** Yellow. **Negative treatment:** Lugtu v. California Highway Patrol (2000) and Henderson v. Quinones (C.D. Cal. 2023) — distinguished.
- **Best quote:** "Under California law, a police officer is granted statutory immunity from liability for malicious prosecution, but not for false arrest and imprisonment." (citing Gov. Code §§ 821.6, 820.4). **Pin discrepancy:** pass 1 recorded 752; pass 2 recorded 753. Cite "752–753" until verified. Fn. 3 (at 752): false arrest is one way of committing false imprisonment.
- **Relevance:** Discusses a detective allegedly presenting false evidence; false imprisonment ends at arraignment, after which malicious prosecution and § 821.6 immunity apply (753–754).

- **Status:** READ RELEVANT PASSAGES (opening, Part II, headnotes).
- **Use:** Primary. **[Researcher's read]** Its arraignment cut-off fits Petitioner's facts (four days' confinement, no complaint filed) but CHP may argue any post-arraignment period is malicious prosecution, not false imprisonment. Not a holding that fabricated evidence makes an arrest false imprisonment.

4.12 Schmidlin v. City of Palo Alto (2007) 157 Cal.App.4th 728

- **Flag:** Yellow. **Negative treatment:** 8 entries, including Schmidt v. California Highway Patrol (declined to extend).
- **Holding:** Affirmed defense verdict; not a fabrication holding.
- **Best quote (*777):** "A person may not be arrested without probable cause... If [the officer] did not [have probable cause], it was unlawful." (CACI 1402 context.)
- **Status:** READ RELEVANT PASSAGES.
- **Use:** Elements only. Review the Schmidt v. CHP treatment before citing.

4.13 Penal Code § 847(b) and Government Code § 820.4

- **§ 847(b):** no civil liability for false arrest/imprisonment if the arrest was lawful or the officer had reasonable cause to believe it lawful (among other grounds). **[Researcher's read]** By negative implication, no protection for an arrest without reasonable cause.
- **§ 820.4 (quote):** "Nothing in this section exonerates a public employee from liability for false arrest or false imprisonment."
- **Status:** READ RELEVANT PASSAGES. **Use:** Supporting.

4.14 Kerkeles v. City of San Jose (2011) 199 Cal.App.4th 1001

- **Status:** SYNOPSIS ONLY. § 1983 fabricated-evidence case. Supports a fabrication theory generally, not false imprisonment. **Use:** Do not quote; optional "see generally."

4.15 Perez Perez v. Wolf, 943 F.3d 853 (9th Cir. 2019)

- **Flag:** Yellow. **Direct history:** reversed Perez v. Duke, 2017 WL 6593707; on remand Perez v. Mayorkas, 2021 WL 1561694. No negative direct history.
- **Negative treatment (2):** Washington v. Trump, 441 F.Supp.3d 1101; Doe v. Mayorkas, 2022 WL 4450272 (D. Minn.) — both distinguished.
- **Holding:** Reviewing a USCIS U-visa denial, the statute (8 U.S.C. §§ 1101(a)(15)(U), 1184(p)) supplies meaningful standards in its eligibility/threshold criteria; review covers failure to consider credible evidence, whether felony harassment is "qualifying criminal activity" (legal error), and substantial evidence. Jurisdiction under 28 U.S.C. § 1331 + APA; § 701(a)(2) is no bar; § 1252(a)(2)(B)(ii) does not strip review (866–68). Remanded on standard of review (864–65).
- **Best quotes:** 863: "[T]he statutory framework provides meaningful standards under which to review the exercise of USCIS's authority to issue U visas." 865: courts can "review its actions for an abuse of its discretion or to determine if its actions were otherwise arbitrary and capricious" (quoting ASSE).

- **Status:** READ IN FULL (majority); Callahan dissent partly read.
- **Use:** Persuasive. Best for "whether a crime is qualifying criminal activity is a legal question a court can review."

4.16 Chairez v. Mayorkas, 168 F.4th 1227 (9th Cir. Mar. 5, 2026) (per curiam; Bea, J., concurring)

- **Flag:** Yellow. **Direct history:** affirms 734 F.Supp.3d 1093 (D. Idaho 2024).
- **Negative treatment (4):** Agrawal v. Edlow, 2026 WL 2363473 (declined to extend); Dinh v. Edlow, 2026 WL 2001155; Suraj v. Edlow, 2026 WL 2198764; Azizi v. Mullin, 2026 WL 2583027 (distinguished).
- **Holding:** § 1182(d)(14) waiver is discretionary; § 1252(a)(2)(B)(ii) bars review; overrules ANA Int'l v. Way methodology per Bouarfa. Distinguishes guidance on discretion from statutory threshold requirements (1234–35); § 701(a)(2) and § 1252 questions differ (1231–32). Follows Garcia v. USCIS, 146 F.4th 743 (cert. petition No. 25-937 pending). Does **not** cite Perez Perez.
- **Best quote (*1234):** "when Congress signals that it is merely providing guidance to the agency on its exercise of discretion, the discretionary judgment call as a whole falls within the jurisdiction-stripping provision."
- **Concurrence:** Bea flags a Poursina/Nakka split and urges en banc review.
- **Status:** READ RELEVANT PASSAGES (majority through ~1236).
- **Use:** Anticipate and distinguish. Watch for en banc / cert developments.

4.17 Concepcion v. Mullin, 2026 WL 1388761 (S.D. Cal. May 18, 2026) and Patel v. Mullin, 2026 WL 3131272 (N.D. Ill. Oct. 19, 2026)

- **Concepcion:** cites Perez Perez at 866 and Chairez at 1232, 1234–35; held § 1252(a)(2)(B)(ii) did not bar review of an adjudication hold. **Patel:** rejects Perez Perez, follows 7th Cir. L.D.G., dismisses; no Chairez cite.
- **Status:** CITING-REF REVIEW (not read in full). **Flags:** not captured.
- **Use:** Concepcion optional, to show Perez Perez survives Chairez in-circuit; Patel is out-of-circuit adverse — know it, do not cite.

4.18 Other California authorities reviewed

- **American Medical Response of Inland Empire v. County of San Bernardino (2025) 117 Cal.App.5th 856, 872** — quotes Common Cause; no ministerial duty to award to highest bidder; reversed preliminary injunction. Flag **unclear** (red in a citing list, none in header). Somewhat adverse on ministerial duty. READ RELEVANT PASSAGE. **Do not cite until flag verified.**
- **Amalgamated Transit Union Local 276 v. San Joaquin RTD (2019) 36 Cal.App.5th 1** — cites CCSO only for de novo statutory interpretation. Weak.
- **Cervantes v. Bianco (Sept. 24, 2026) 20 Cal.5th 1093** — cites Common Cause for standing only. Not useful on the merits.

- **Not opened:** Chaldean Coalition (2025 WL 1217592); Loeber v. Lakeside Joint School Dist. (2024); Ruby Falls Fund v. Ainsworth (2026); Levin v. United Air Lines; Bidari v. Kelk; Kastoun v. Noem; Leon v. County of Riverside (2023) 14 Cal.5th 910 (known only as disapproving Gillan on § 821.6 scope); City & County of S.F. v. Barr.

5. Do-not-cite / caution list

Authority	Problem	Action
Vichy Springs Resort v. City of Ukiah (2024) 101 Cal.App.5th 46 (review denied July 10, 2024)	No flag, but the CCSO "only one choice" quote and the East Shore Parks legal-error quote appear in **unpublished parts II–V** (after *61). Not citable (Cal. Rules of Court, rule 8.1115).	**Do not cite.** Cite CCSO 827 directly; open East Shore Parks 573 first-hand before citing.
Gillan v. City of San Marino (2007) 147 Cal.App.4th 1033, 1048, 1050	**RED flag**; disapproved by Leon v. County of Riverside (2023) 14 Cal.5th 910 on § 821.6 scope.	**Avoid.**
Assn. of Deputy District Attorneys v. Gascon (2022) 295 Cal.Rptr.3d 1	**RED flag.** Official cite not captured.	**Avoid.**
People v. Agustin, 2025 WL 3564125 (Cal. Ct. App., 4th Dist., Dec. 12, 2025)	Unpublished/noncitable; red flag. Only California case located citing § 679.10 with "certif!".	**Do not cite.**
Feah, LLC v. City of El Monte, 2026 WL 171385 (Cal. Ct. App., 2d Dist., Jan. 22, 2026)	Unpublished/noncitable; only partly read.	Do not cite; it does not undermine CV Amalgamated on the points used.
People v. Sanders (2003) 31 Cal.4th 318, 330–332	Pinpoint previously flagged as miscite/unverified.	**Keep out.**
Mercer v. Department of Motor Vehicles (1991) 53 Cal.3d 753, 768–769	Pinpoint previously flagged as miscite/unverified; poor factual fit.	**Keep out.**
American Medical Response v. County of San Bernardino (2025) 117 Cal.App.5th 856	Flag unclear; adverse-leaning.	Verify flag; do not cite affirmatively.
Citizens for East Shore Parks (2011) 202 Cal.App.4th 549, 573	Seen only second-hand, inside an unpublished opinion section.	Open and KeyCite before citing.
Kerkeles (2011) 199 Cal.App.4th 1001	Synopsis only.	No quotations.
Patel v. Mullin (N.D. Ill. 2026)	Adverse, out of circuit.	Know; do not cite.
Secondary articles (53 Cal. W. L. Rev. 149; 22 San Joaquin Agric. L. Rev. 141)	Snippets only.	Do not quote until read.

6. Corrections to the working packet

These apply to `Revised_Motion_Packet.md` (revised writ motion) and the first-pass citator note. Line references are to `Revised_Motion_Packet.md` as of commit `0709605`.

1. **Remedy citations (packet ~line 200).** The alternative-remedy paragraph cites Saleeby, 39 Cal.3d at 561–562, for vacate-and-remand. Pages 561–562 support the no-particular-method limit; findings and remand are at **565–568**. Add: Saleeby, 39 Cal.3d at 565–568, and CV Amalgamated, 82 Cal.App.5th at 286 (quote exactly).
2. **Direct-certification remedy (packet ~line 198).** Add CV Amalgamated, 82 Cal.App.5th at 283, alongside CCSO 827, as a published example of a writ directing an agency to rescind a rejection and process under binding rules.
3. **Standards paragraph (packet ~line 126).** Consider adding Crestwood, 91 Cal.App.5th at 16, and Alameda Health System, 100 Cal.App.5th at 1177 (First District), after Common Cause and CCSO. Keep Saleeby 561–562 there (correct for that point; 562 holds the operative sentences).
4. **Qualifying-crime section (packet ~lines 122, 138, 164).** Add Hagberg, 32 Cal.4th at 372 fn. 7, 372–373, and Asgari, 15 Cal.4th at 752–753 & fn. 3, plus Gov. Code § 820.4, to support that an unlawful arrest/detention is false imprisonment and that the tort and crime share a definition. Mark Asgari pin as 752–753 until verified.
5. **§ 679.10(c)(18).** The packet cites subds. (c)(18)–(19) for unlawful criminal restraint and false imprisonment. These passes confirmed only (c)(19) = false imprisonment. Confirm the (c)(18) text before filing.
6. **Federal discretion paragraph (packet ~line 144).** "Some federal decisions treat the federal certification decision as discretionary" is uncited. Either cite Ordonez Orosco, 598 F.3d at 226, after re-reading it, or leave uncited. Consider adding Perez Perez, 943 F.3d at 863, 866–868, for the counterpoint that whether a crime is qualifying is a reviewable legal question, with a footnote acknowledging Chairez.
7. **First-impression candor.** Add one sentence stating that no published California decision construing § 679.10's certification duty was located (Westlaw, Oct. 24, 2026).
8. **Table of authorities.** If items 1–6 are adopted, add CV Amalgamated, Crestwood, Alameda Health System, Hagberg, Asgari, Gov. Code § 820.4, and (if used) Perez Perez.
9. **First-pass citator note — superseded entries.** (a) Vichy Springs: move to do-not-cite (unpublished parts). (b) Hagberg: now READ RELEVANT PASSAGES; 14 negative entries reviewed and off-point. (c) Perez Perez: majority now READ IN FULL (was "only skimmed"). (d) Asgari: pin 752 vs 753 unresolved. (e) Water Audit: key words at 1181. (f) Crestwood/Alameda Health/Water Audit*: flags not captured — re-check.
10. **Sanders/Mercer.** Confirm neither reappears in any draft or table of authorities.

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7. Open items

#	Item	Priority	Notes
1	Resolve Asgari pin (752 vs 753) for the "statutory immunity ... but not for false arrest and imprisonment" sentence	High	Use 752–753 meanwhile.
2	Pull Pen. Code § 236 text on Westlaw (and § 146(a))	High	Packet quote earlier verified via official source; re-confirm.
3	Confirm § 679.10(c)(18) wording	High	See Correction 5.
4	Verify AMR v. County of San Bernardino flag	Medium	Red in a citing list vs. none in header.
5	Review Common Cause's own 8 negative entries	Medium	Expect off-point; confirm.
6	Capture KeyCite flags for Crestwood, Alameda Health System, Common Cause, Western States, Jackson	Medium	Not captured in passes.
7	Open and KeyCite Citizens for East Shore Parks (2011) 202 Cal.App.4th 549, 573	Medium	Only if the legal-error-within-arbitrary review point is used.
8	Deeper 2015+ citing references for Common Cause 442 and CCSO 827	Medium	Look for a published case directing a specific act under the "only one choice" rule.
9	Read Dummer v. City & County of S.F. (2026) to see how it distinguishes Water Audit	Low	
10	Read Schmidt v. CHP's treatment of Schmidlin	Low	
11	Read the two secondary articles in full	Low	Possibly useful on legislative intent of SB 674.
12	Read remainder of Feah	Low	Blocked by Westlaw document limit.
13	Re-read Ordonez Orosco, Mercado-Guillen, Trevino; capture flags and pins	Low–Medium	For anticipating CHP's opposition.
14	Monitor Chairez (en banc) and Garcia v. USCIS (cert. No. 25-937)	Low	
15	Search gap: no California case expressly holds that an officer's arrest on fabricated evidence is false imprisonment	Note	Rely on § 679.10(c)(19), Hagberg, Asgari, Gov. Code § 820.4, Pen. Code § 847(b), Schmidlin (elements), and the Krishnan order (persuasive).
16	Get the official cite for Assn. of Deputy DAs v. Gascon (2022)	Low	Only for completeness; it is on the avoid list.

End of analysis. Flags as of October 24, 2026; re-run KeyCite on every cited authority within 7 days of filing.